

PROPOSED
SENATE AMENDMENTS TO H.B. 2955
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 3-3433, Arizona Revised Statutes, is amended
3 to read:

4 3-3433. Standards for motor fuel; exceptions

5 A. Except as provided in section 3-3434 and subsections C, D, E, F,
6 G and K of this section, a retail seller or fleet owner shall not store,
7 sell or expose or offer for sale any motor fuel, kerosene, oil or other
8 liquid or gaseous fuel or lubricating oil, lubricant, mixtures of
9 lubricants or other similar products if the product fails to meet the
10 standards specified in this section and in the rules adopted by the
11 associate director.

12 B. A person shall not misrepresent the nature, origination,
13 quality, grade or identity of any product specified in subsection A of
14 this section or represent the nature, origination, quality, grade or
15 identity of such product in any manner calculated or tending to mislead or
16 in any way deceive. This subsection does not prohibit product origination
17 disclaimer labeling on the retail dispenser.

18 C. After consultation with the director of the department of
19 environmental quality, the standards and test methods for motor fuels
20 shall be established by the associate director of the division by rule.

21 D. Maximum vapor pressure for gasoline that is supplied or sold by
22 any person and that is intended as a final product for the fueling of
23 motor vehicles in a county with a population of one million two hundred
24 thousand or more persons and any portion of a county contained in area A
25 shall be 9.0 pounds per square inch from and after September 30 through
26 March 31 of each year. Fuel used in motor vehicles at a manufacturer's
27 proving ground or a motor vehicle racing event is exempt from this
28 subsection.

1 E. From and after September 30 through March 31 of each year, a
2 person shall not supply or sell gasoline that exceeds the ASTM D4814 class
3 A vapor pressure/distillation class ten volume percent evaporated
4 distillation temperature.

5 F. Maximum vapor pressure for gasoline that is supplied or sold by
6 any person and that is intended as a final product for the fueling of
7 motor vehicles in a county with a population of one million two hundred
8 thousand persons or more and any portion of a county contained in area A
9 shall be ~~[7.0]~~ [7.4] pounds per square inch from and after May 31 through
10 September 30 of each year. Fuel used in motor vehicles at a
11 manufacturer's proving ground or a motor vehicle racing event is exempt
12 from this subsection.

13 G. Exclusively for the purposes of transportation conformity and
14 only if the administrator of the United States environmental protection
15 agency fails to approve the applicable plan required pursuant to section
16 49-406, maximum vapor pressure for gasoline that is supplied or sold by
17 any person and that is intended as a final product for the fueling of
18 motor vehicles in area B shall be ten pounds per square inch from and
19 after September 30 through March 31 of each year. Fuel used in motor
20 vehicles at a manufacturer's proving ground or a motor vehicle racing
21 event is exempt from this subsection.

22 H. Notwithstanding subsections D, F and G of this section, the
23 associate director of the division in consultation with the director of
24 the department of environmental quality shall approve alternate fuel
25 control measures that are submitted by gasoline providers and that the
26 director and the associate director determine will result in either of the
27 following:

28 1. Motor vehicle carbon monoxide emissions that are equal to or
29 less than emissions that result under compliance with subsection D of this
30 section and section 3-3492. In making this determination, the associate
31 director of the division and the director of the department of
32 environmental quality shall compare the emissions of the alternate fuel
33 control measure with the emissions of a fuel with a maximum vapor pressure
34 standard as prescribed by this section and with the minimum oxygen content
35 or percentage by volume of ethanol as prescribed by section 3-3492.

36 2. Motor vehicle non-methane hydrocarbon emissions that are equal
37 to or less than the emissions that result under compliance with subsection
38 F of this section. In making this determination, the associate director
39 of the division and the director of the department of environmental
40 quality shall compare the motor vehicle non-methane hydrocarbon emissions
41 of the alternate fuel control measure with the motor vehicle non-methane
42 hydrocarbon emissions of a fuel that complies with the maximum vapor
43 pressure standard as prescribed by subsection F of this section.

44 I. Any alternate fuel control measures that are approved shall not
45 increase emissions of non-methane hydrocarbons, particulates, carbon
46 monoxide or oxides of nitrogen. Alternate fuel control measures approved
47 pursuant to subsection H of this section and this subsection may be used

1 by any gasoline provider unless the approval is rescinded more than one
2 hundred eighty days before the first day of a gasoline control
3 period. Gasoline providers that use an approved alternate fuel control
4 measure shall annually submit a compliance plan to the associate director
5 ~~[no]~~ **[NOT]** later than sixty days before the first day of a gasoline
6 control period.

7 J. A person shall not sell or offer or expose for sale diesel fuel
8 grade 1, 2 or 4 as defined in ASTM D975, biodiesel, biodiesel blends or
9 biomass-based diesel or biomass-based diesel blends that contain sulfur in
10 excess of fifteen parts per million. Locomotive and marine diesel fuel is
11 exempt from this requirement if the fuel meets the requirements of 40 Code
12 of Federal Regulations section 80.513(g) and (h).

13 K. A person shall label dispensers at which biodiesel, biodiesel
14 blends, biomass-based diesel or biomass-based diesel blends are dispensed
15 in conformance with 16 Code of Federal Regulations part 306. This section
16 does not preclude a person from labeling a dispenser that dispenses diesel
17 fuel that contains up to five percent biodiesel or biomass-based diesel
18 with a label that states "may contain up to five percent biodiesel" or
19 "may contain up to five percent biomass-based diesel".

20 L. For biodiesel blends that contain more than five percent by
21 volume of biodiesel, a person shall prepare product transfer documents in
22 a manner that notifies the transferee of the percent by volume of
23 biodiesel in the product.

24 M. The associate director shall adopt rules regarding the
25 establishment and enforcement of all of the following:

26 1. National or federal standards for individual biofuels and
27 biofuel blends.

28 2. United States environmental protection agency and ASTM test
29 methods for individual biofuels and biofuel blends.

30 3. Registration and reporting requirements for producers, blenders
31 and suppliers of biofuels and biofuel blends.

32 4. Labeling requirements for biofuels and biofuel blends other than
33 biodiesel or biodiesel blends.

34 5. Quality assurance and quality control programs for producers,
35 blenders and suppliers of biofuels and biofuel blends addressing rack,
36 batch or other blending.

37 6. Requirements that the dispensing equipment meet appropriate
38 UL ratings where available and applicable, that the equipment comply with
39 rules adopted by the division relating to approval, installation and sale
40 of devices and that the equipment be compatible with the products being
41 dispensed.

42 N. A biofuels or biofuel blends producer, blender, distributor,
43 supplier or retail seller that is in compliance with this section and the
44 rules adopted pursuant to this section is not liable to a consumer for any
45 injuries or property damage related to a consumer who misfuels.

46 O. If any person transfers custody or title of a diesel fuel or
47 distillate, biodiesel, a biodiesel blend, biomass-based diesel or a

1 biomass-based diesel blend, except if the fuel is dispensed into a motor
2 vehicle or nonroad, locomotive or marine equipment, the transferor shall
3 provide to the transferee product transfer documents that conform with 40
4 Code of Federal Regulations section 80.590.

5 P. If the transfer of a motor fuel is from a terminal, storage
6 facility, or transmix facility, the product transfer documents shall
7 contain the information prescribed in subsection 0 of this section. In
8 addition, the fuel transporter shall ensure that the name and address of
9 the final destination for the shipment, as prescribed by division rule,
10 are included and that the product transfer documents accompany the
11 shipment to its final destination.>>

12 Sec. 2. Section 3-3493, Arizona Revised Statutes, as amended by
13 Laws 2016, chapter 232, section 27, is amended to read:

14 3-3493. Area A; fuel reformulation; rules

15 ~~A. All gasoline produced and shipped to or within this state and~~
16 ~~sold or offered for sale for use in motor vehicles in a county with a~~
17 ~~population of one million two hundred thousand or more persons and any~~
18 ~~portion of a county contained in area A, subject to an appropriate waiver~~
19 ~~granted by the administrator of the United States environmental protection~~
20 ~~agency pursuant to section 211(c)(4) of the clean air act as defined in~~
21 ~~section 49-401.01, shall comply with either of the following fuel~~
22 ~~reformulation options:~~

23 ~~1. A gasoline that meets standards for federal phase II~~
24 ~~reformulated gasoline, as provided in 40 Code of Federal Regulations~~
25 ~~section 80.41, paragraphs (e) through (h), in effect on January 1, 1999,~~
26 ~~except that the minimum oxygen content standard does not apply. The~~
27 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
28 ~~section 3-3433, subsections D and F.~~

29 ~~2. California phase 2 reformulated gasoline, including alternative~~
30 ~~formulations allowed by the predictive model, as adopted by the California~~
31 ~~air resources board pursuant to California Code of Regulations title 13,~~
32 ~~sections 2261 through 2262.7 and 2265, in effect on January 1, 1997,~~
33 ~~except that the minimum oxygen content standard does not apply. The~~
34 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
35 ~~section 3-3433, subsections D and F.~~

36 A. FOR THE PERIOD BEGINNING FROM AND AFTER MARCH 31 THROUGH OCTOBER
37 31 OF EACH YEAR, ALL GASOLINE PRODUCED AND SHIPPED TO OR WITHIN THIS STATE
38 AND SOLD OR OFFERED FOR SALE FOR USE IN MOTOR VEHICLES IN A COUNTY WITH A
39 POPULATION OF ONE MILLION TWO HUNDRED THOUSAND OR MORE PERSONS AND ANY
40 PORTION OF A COUNTY CONTAINED IN AREA A, SUBJECT TO AN APPROPRIATE WAIVER
41 GRANTED BY THE ADMINISTRATOR OF THE UNITED STATES ENVIRONMENTAL PROTECTION
42 AGENCY PURSUANT TO SECTION 211(c)(4) OF THE CLEAN AIR ACT AS DEFINED IN
43 SECTION 49-401.01, SHALL COMPLY WITH STANDARDS FOR [ASTM D4814 AND SHALL]
44 [FEDERAL PHASE II REFORMULATED GASOLINE, AS PROVIDED IN 40 CODE OF FEDERAL
45 REGULATIONS SECTION 1090.200, IN EFFECT ON JANUARY 1, 2021, AS MODIFIED
46 TO] MEET THE MAXIMUM VAPOR PRESSURE REQUIREMENTS IN SECTION 3-3433,
47 SUBSECTIONS D AND F.

1 B. For the period beginning November 1 through March 31 of each
2 year, all gasoline produced and shipped to or within this state and sold
3 or offered for sale for use in motor vehicles in a county with a
4 population of one million two hundred thousand or more persons and any
5 portion of a county contained in area A, subject to an appropriate waiver
6 granted by the administrator of the United States environmental protection
7 agency pursuant to section 211(c)(4) of the clean air act as defined in
8 section 49-401.01, shall comply with standards for California phase 2
9 reformulated gasoline, including alternative formulations allowed by the
10 predictive model, as adopted by the California air resources board
11 pursuant to California Code of Regulations title 13, sections 2261 through
12 2262.7 and 2265, in effect on January 1, 1997 and shall meet the maximum
13 vapor pressure requirements in section 3-3433, subsections D and F. The
14 fuel described in this subsection shall meet the requirements of section
15 3-3492, subsection A, ~~paragraph 1.~~

16 C. Any registered supplier or oxygenate blender, as defined in
17 division rules, may petition the associate director to request that all
18 registered suppliers or oxygenate blenders be allowed to comply with
19 standards other than the standards prescribed by ~~THIS SECTION OR~~ section
20 3-3492, subsection A if the petitioner can demonstrate that ~~THE~~
21 ~~PETITIONER'S ABILITY TO SUPPLY ethanol supply shortages are~~ OR GASOLINE
22 ~~MEETING THE SPECIFICATIONS OF SUBSECTION A OR B OF THIS SECTION IS IN~~
23 imminent DANGER AND MAY RESULT IN SUPPLY SHORTAGES OF ETHANOL AND GASOLINE
24 IN AREA A.

25 D. The petition shall:

26 ~~1. Identify specific supply conditions that will result in a~~
27 ~~shortage of ethanol.~~

28 1. FOR OXYGENATE SHORTAGES:

29 ~~2.~~ (a) Identify which oxygenate or oxygenates and the
30 concentration that will be blended into gasoline BY THE PETITIONER for
31 sale or use in area A.

32 ~~3.~~ (b) Demonstrate that the alternative oxygenate blend comes
33 closest to meeting a three and one-half percent by weight oxygen content
34 ~~at reasonable cost~~, unless the registered supplier or oxygenate blender is
35 petitioning to use a gasoline-ethanol blend containing less than ten
36 percent by volume of ethanol.

37 2. FOR GASOLINE SHORTAGES, IDENTIFY THE FORMULATION OF GASOLINE
38 THAT THE PETITIONER WILL SELL IN LIEU OF GASOLINE MEETING THE STANDARDS IN
39 SUBSECTION A OR B OF THIS SECTION.

40 ~~4.~~ 3. Specify a PROJECTED time period for compliance with any
41 provision of THIS SECTION AND section 3-3492, subsection A, not to exceed
42 sixty days.

43 E. The associate director shall either grant or deny the petition
44 in writing within seven days of its receipt. Any decision by the
45 associate director to grant the petition shall be equally applicable to
46 all registered suppliers or oxygenate blenders and shall not be
47 selectively applied to any single registered supplier or oxygenate

1 blender. The petition may be granted only if the associate director
2 verifies that the basis for requesting the petition is factual.

3 F. The associate director may reauthorize a petition if the
4 petitioner can demonstrate that the conditions have continued. The
5 reauthorization of a petition shall not exceed thirty days.

6 G. The associate director of the division shall consult with the
7 director of the department of environmental quality before granting,
8 reauthorizing or denying any such petition.

9 H. The ASSOCIATE director, ~~of environmental quality~~ in consultation
10 with the ~~associate~~ director of the ~~division~~ DEPARTMENT OF ENVIRONMENTAL
11 QUALITY, shall adopt by rule:

12 1. Requirements to implement subsections A, B, C and D of this
13 section.

14 2. Requirements for recordkeeping, reporting and analytical methods
15 for fuel providers to demonstrate compliance with subsections A, B, C and
16 D of this section.

17 I. This section does not apply to fuel sold for use at a motor
18 vehicle manufacturer proving ground or at a motor vehicle racing event.

19 Sec. 3. Section 3-3493, Arizona Revised Statutes, as amended by
20 Laws 2017, chapter 295, section 2, is amended to read:

21 3-3493. Area A: fuel reformulation: rules

22 ~~A. All gasoline produced and shipped to or within this state and~~
23 ~~sold or offered for sale for use in motor vehicles in a county with a~~
24 ~~population of one million two hundred thousand or more persons and any~~
25 ~~portion of a county contained in area A, subject to an appropriate waiver~~
26 ~~granted by the administrator of the United States environmental protection~~
27 ~~agency pursuant to section 211(c)(4) of the clean air act as defined in~~
28 ~~section 49-401.01, shall comply with either of the following fuel~~
29 ~~reformulation options:~~

30 ~~1. A gasoline that meets standards for federal phase II~~
31 ~~reformulated gasoline, as provided in 40 Code of Federal Regulations~~
32 ~~section 80.41, paragraphs (e) through (h), in effect on January 1, 1999,~~
33 ~~except that the minimum oxygen content standard does not apply. The~~
34 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
35 ~~section 3-3433, subsections D and F.~~

36 ~~2. California phase 2 reformulated gasoline, including alternative~~
37 ~~formulations allowed by the predictive model, as adopted by the California~~
38 ~~air resources board pursuant to California Code of Regulations title 13,~~
39 ~~sections 2261 through 2262.7 and 2265, in effect on January 1, 1997,~~
40 ~~except that the minimum oxygen content standard does not apply. The~~
41 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
42 ~~section 3-3433, subsections D and F.~~

43 A. FOR THE PERIOD BEGINNING FROM AND AFTER MARCH 31 THROUGH OCTOBER
44 31 OF EACH YEAR, ALL GASOLINE PRODUCED AND SHIPPED TO OR WITHIN THIS STATE
45 AND SOLD OR OFFERED FOR SALE FOR USE IN MOTOR VEHICLES IN A COUNTY WITH A
46 POPULATION OF ONE MILLION TWO HUNDRED THOUSAND OR MORE PERSONS AND ANY
47 PORTION OF A COUNTY CONTAINED IN AREA A, SUBJECT TO AN APPROPRIATE WAIVER

1 GRANTED BY THE ADMINISTRATOR OF THE UNITED STATES ENVIRONMENTAL PROTECTION
2 AGENCY PURSUANT TO SECTION 211(c)(4) OF THE CLEAN AIR ACT AS DEFINED IN
3 SECTION 49-401.01, SHALL COMPLY WITH STANDARDS ~~[FOR ASTM D4814 AND SHALL]~~
4 ~~[FEDERAL PHASE II REFORMULATED GASOLINE, AS PROVIDED IN 40 CODE OF FEDERAL~~
5 ~~REGULATIONS SECTION 1090.200, IN EFFECT ON JANUARY 1, 2021, AS MODIFIED~~
6 ~~TO]~~ MEET THE MAXIMUM VAPOR PRESSURE REQUIREMENTS IN SECTION 3-3433,
7 SUBSECTIONS D AND F.

8 B. For the period beginning November 1 through March 31 of each
9 year, all gasoline produced and shipped to or within this state and sold
10 or offered for sale for use in motor vehicles in a county with a
11 population of one million two hundred thousand or more persons and any
12 portion of a county contained in area A, subject to an appropriate waiver
13 granted by the administrator of the United States environmental protection
14 agency pursuant to section 211(c)(4) of the clean air act as defined in
15 section 49-401.01, shall comply with standards for California phase 2
16 reformulated gasoline, including alternative formulations allowed by the
17 predictive model, as adopted by the California air resources board
18 pursuant to California Code of Regulations title 13, sections 2261 through
19 2262.7 and 2265, in effect on January 1, 1997 and shall meet the maximum
20 vapor pressure requirements in section 3-3433, subsections D and F. The
21 fuel described in this subsection shall meet the requirements of section
22 3-3492, subsection A, ~~paragraph 1 or 2.~~

23 C. Any registered supplier or oxygenate blender, as defined in
24 division rules, may petition the associate director to request that all
25 registered suppliers or oxygenate blenders be allowed to comply with
26 standards other than the standards prescribed by THIS SECTION OR section
27 3-3492, subsection A if the petitioner can demonstrate that THE
28 PETITIONER'S ABILITY TO SUPPLY ethanol ~~supply shortages are~~ OR GASOLINE
29 MEETING THE SPECIFICATIONS OF SUBSECTION A OR B OF THIS SECTION IS IN
30 imminent DANGER AND MAY RESULT IN SUPPLY SHORTAGES OF ETHANOL AND GASOLINE
31 IN AREA A.

32 D. The petition shall:

33 ~~1. Identify specific supply conditions that will result in a~~
34 ~~shortage of ethanol.~~

35 1. FOR OXYGENATE SHORTAGES:

36 ~~2.~~ (a) Identify which oxygenate or oxygenates and the
37 concentration that will be blended into gasoline BY THE PETITIONER for
38 sale or use in area A.

39 ~~3.~~ (b) Demonstrate that the alternative oxygenate blend comes
40 closest to meeting a three and one-half percent by weight oxygen content
41 ~~at reasonable cost~~, unless the registered supplier or oxygenate blender is
42 petitioning to use a gasoline-ethanol blend containing less than ten
43 percent by volume of ethanol.

44 2. FOR GASOLINE SHORTAGES, IDENTIFY THE FORMULATION OF GASOLINE
45 THAT THE PETITIONER WILL SELL IN LIEU OF GASOLINE MEETING THE STANDARDS IN
46 SUBSECTION A OR B OF THIS SECTION.

1 ~~4.~~ 3. Specify a PROJECTED time period for compliance with any
2 provision of THIS SECTION OR section 3-3492, subsection A, not to exceed
3 sixty days.

4 E. The associate director shall either grant or deny the petition
5 in writing within seven days of its receipt. Any decision by the
6 associate director to grant the petition shall be equally applicable to
7 all registered suppliers or oxygenate blenders and shall not be
8 selectively applied to any single registered supplier or oxygenate
9 blender. The petition may be granted only if the associate director
10 verifies that the basis for requesting the petition is factual.

11 F. The associate director may reauthorize a petition if the
12 petitioner can demonstrate that the conditions have continued. The
13 reauthorization of a petition shall not exceed thirty days.

14 G. The associate director of the division shall consult with the
15 director of the department of environmental quality before granting,
16 reauthorizing or denying any such petition.

17 H. The ASSOCIATE director, ~~of environmental quality~~ in consultation
18 with the ~~associate~~ director of the ~~division~~ DEPARTMENT OF ENVIRONMENTAL
19 QUALITY, shall adopt by rule:

20 1. Requirements to implement subsections A, B, C and D of this
21 section.

22 2. Requirements for recordkeeping, reporting and analytical methods
23 for fuel providers to demonstrate compliance with subsections A, B, C
24 and D of this section.

25 I. This section does not apply to fuel sold for use at a motor
26 vehicle manufacturer proving ground or at a motor vehicle racing event.

27 Sec. 4. Section 3-3494, Arizona Revised Statutes, is amended to
28 read:

29 3-3494. Area C: fuel reformulation; rules

30 ~~A. From and after May 31 through September 30 of each year, all~~
31 ~~gasoline produced and shipped to or within this state and sold or offered~~
32 ~~for sale for use in motor vehicles in area C shall comply with either of~~
33 ~~the following fuel reformulation options:~~

34 ~~1. A gasoline that meets standards for federal phase II~~
35 ~~reformulated gasoline, as provided in 40 Code of Federal Regulations~~
36 ~~section 80.41, paragraphs (e) through (h), in effect on January 1, 1999,~~
37 ~~except that the minimum oxygen content standard does not apply. The~~
38 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
39 ~~section 3-3434, subsection D.~~

40 ~~2. California phase 2 reformulated gasoline, including alternative~~
41 ~~formulations allowed by the predictive model, as adopted by the California~~
42 ~~air resources board pursuant to California Code of Regulations title 13,~~
43 ~~sections 2261 through 2262.7 and 2265, in effect on January 1, 1997,~~
44 ~~except that the minimum oxygen content standard does not apply. The~~
45 ~~gasoline shall also meet the maximum vapor pressure requirements in~~
46 ~~section 3-3434, subsection D.~~

1 A. FOR THE PERIOD BEGINNING FROM AND AFTER MARCH 31 THROUGH OCTOBER
2 31 OF EACH YEAR, ALL GASOLINE PRODUCED AND SHIPPED TO OR WITHIN THIS STATE
3 AND SOLD OR OFFERED FOR SALE FOR USE IN MOTOR VEHICLES IN AREA C, SUBJECT
4 TO AN APPROPRIATE WAIVER GRANTED BY THE ADMINISTRATOR OF THE UNITED STATES
5 ENVIRONMENTAL PROTECTION AGENCY PURSUANT TO SECTION 211(c)(4) OF THE CLEAN
6 AIR ACT AS DEFINED IN SECTION 49-401.01, SHALL COMPLY WITH STANDARDS FOR
7 ~~[ASTM D4814 AND SHALL]~~ [FEDERAL PHASE II REFORMULATED GASOLINE, AS
8 PROVIDED IN 40 CODE OF FEDERAL REGULATIONS SECTION 1090.200, IN EFFECT ON
9 JANUARY 1, 2021, AS MODIFIED TO] MEET THE MAXIMUM VAPOR PRESSURE
10 REQUIREMENTS IN SECTION 3-3433, SUBSECTION D.

11 B. Any registered supplier or oxygenate blender, as defined in
12 division rules, may petition the associate director to request that all
13 registered suppliers or oxygenate blenders be allowed to supply gasoline
14 in area C that does not meet the standards in subsection A of this section
15 if the petitioner demonstrates that ~~a shortage in~~ the PETITIONER'S ABILITY
16 TO supply ~~of~~ gasoline meeting the standards in subsection A of this
17 section is IN imminent DANGER AND MAY RESULT IN SUPPLY SHORTAGES OF
18 GASOLINE IN AREA C.

19 C. A petition under subsection B of this section shall:

20 ~~1. Identify specific supply conditions that will result in a~~
21 ~~shortage of gasoline meeting the standards in subsection A of this~~
22 ~~section.~~

23 ~~2.~~ 1. Identify the formulation of gasoline that THE PETITIONER
24 will ~~be sold~~ SELL in area C in lieu of gasoline meeting the standards in
25 subsection A of this section.

26 ~~3.~~ 2. Specify a PROJECTED time period for compliance with the
27 standards of subsection A of this section not to exceed sixty days.

28 D. The associate director shall either grant or deny a petition
29 under subsection B of this section in writing within seven days of its
30 receipt. Any decision by the associate director to grant the petition
31 shall be equally applicable to all registered suppliers or oxygenate
32 blenders and shall not be selectively applied to any single registered
33 supplier or oxygenate blender. The petition may be granted only if the
34 associate director verifies that the basis for requesting the petition is
35 factual.

36 E. The associate director may reauthorize a petition granted under
37 subsection B of this section if the petitioner demonstrates that the
38 conditions identified in the petition have continued. The reauthorization
39 of a petition shall not exceed thirty days.

40 F. The associate director of the division shall consult with the
41 director of the department of environmental quality before granting,
42 reauthorizing or denying any petition under subsection B of this section.

43 G. The associate director, in consultation with the director of the
44 department of environmental quality, shall adopt by rule:

45 1. Requirements to implement subsections A, B and C of this
46 section.

1 2. Requirements for recordkeeping, reporting and analytical methods
2 for fuel providers to demonstrate compliance with subsection A of this
3 section.

4 H. This section does not apply to fuel sold for use at a motor
5 vehicle manufacturer proving ground or at a motor vehicle racing event.

6 <<Sec. 5. Department of environmental quality; fuel
7 formulation; state implementation plan

8 [A. Within nine months after the effective date of this act, the
9 governor and the director of the department of environmental quality shall
10 collaborate with the Maricopa association of governments to submit a
11 revision to the state implementation plan for 2015 national ambient air
12 quality standards eight-hour ozone nonattainment for the Maricopa
13 nonattainment area that removes summer cleaner burning gasoline with a
14 maximum vapor pressure of 7.0 pounds per square inch for the nonattainment
15 areas of this state and replace it with federal reformulated gasoline with
16 a maximum vapor pressure of 7.4 pounds per square inch. The revised state
17 implementation plan may not make or proposes any other changes to the
18 control measures in the state implementation plan.

19 B. The governor and the director of the department of environmental
20 quality shall include appropriate documentation with the revised state
21 implementation plan to demonstrate that the requested revision specified
22 meets all Appendix V and clean air act requirements for the Maricopa
23 nonattainment area, including a demonstration showing that the revision
24 will not increase eight-hour ground-level ozone levels in the Maricopa
25 nonattainment area to seventy parts per billion or greater or that the
26 revision will not otherwise interfere with the state's ability to attain
27 or make reasonable further progress on any national ambient air quality
28 standards under the clean air act. The governor and the director of the
29 department of environmental quality shall request all necessary
30 information from the Maricopa association of governments and the Maricopa
31 association of governments shall provide all relevant supporting documents
32 necessary for the governor and the director of the department of
33 environmental quality to comply with this subsection.

34 C. Unless more favorable parameters exist that would lead to the
35 approval of the requested revision or the United States environmental
36 protection agency requests additional information or the use of an
37 alternative parameter that would lead to the approval of the requested
38 revision, the emissions modeling and supporting documentation required
39 pursuant this section shall use the same emissions modeling parameters
40 that the Maricopa association of governments used in the 2025 clean air
41 act section 179B(b) retrospective demonstration that the Maricopa
42 association of governments submitted to the United States environmental
43 protection agency in September 2025 that used average day emissions for
44 2023 and ozone concentrations calculated as part per billions.]]>>

1 Sec. 6. Conditional enactment; notice

2 [A. Section 3-3433, Arizona Revised Statutes, as amended by this
3 act, does not become effective unless on or before July 1, 2030 the United
4 States environmental protection agency approves the proposed modifications
5 to the gasoline fuel formulation requirements as part of the state
6 implementation plan for air quality.]

7 ~~[A.]~~ [B.] Section 3-3493, Arizona Revised Statutes, as amended by
8 Laws 2016, chapter 232, section 27 and this act, and section 3-3494,
9 Arizona Revised Statutes, as amended by this act, do not become effective
10 unless on or before July 1, 2030 the United States environmental
11 protection agency approves the proposed modifications to the gasoline fuel
12 formulation requirements as part of the state implementation plan for air
13 quality.

14 ~~[B.]~~ [C.] Section 3-3493, Arizona Revised Statutes, as amended by
15 Laws 2017, chapter 295, section 2 and this act, does not become effective
16 unless the condition prescribed by Laws 2017, chapter 295, section 3, as
17 amended by Laws 2022, chapter 177, section 12 and Laws 2024, chapter 70,
18 section 1, is met and on or before July 1, 2030 the United States
19 environmental protection agency approves the proposed modifications to the
20 gasoline fuel formulation requirements as part of the state implementation
21 plan for air quality.

22 ~~[C.]~~ [D.] The director of the department of environmental quality
23 shall notify in writing the director of the Arizona legislative council on
24 or before October 1, 2030 either:

25 1. Of the date on which the condition prescribed by subsection A~~[.]~~

26 ~~[or]~~ B [or C] of this section was met.

27 2. That neither condition was met.

28 Enroll and engross to conform

29 Amend title to conform

SHAWNNA BOLICK

2955BOLICK.docx

03/24/2026

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